

9.	25CV2442	ELIJAH CARON ET AL VS. DOMINICK SAGER ET AL
Motion to Consolidate		

Plaintiff/Cross-Defendant moves for consolidation of this action with the unlawful detainer filed in case 26UD0098.

The Plaintiffs claim an ownership interest in the subject residence, the same residence which is the subject of the unlawful detainer.

Code of Civil Procedure § 403 provides:

A judge may, on motion, transfer an action or actions from another court to that judge's court for coordination with an action involving a common question of fact or law within the meaning of Section 404. The motion shall be supported by a declaration stating facts showing that the actions meet the standards specified in Section 404.1, are not complex as defined by the Judicial Council and that the moving party has made a good faith effort to obtain agreement to the transfer from all parties to each action. Notice of the motion shall be served on all parties to each action and on each court in which an action is pending. Any party to that action may file papers opposing the motion within the time permitted by rule of the Judicial Council. The court to which a case is transferred may order the cases consolidated for trial pursuant to Section 1048 without any further motion or hearing.

Code of Civil Procedure § 404.1 provides:

Coordination of civil actions sharing a common question of fact or law is appropriate if one judge hearing all of the actions for all purposes in a selected site or sites will promote the ends of justice taking into account whether the common question of fact or law is predominating and significant to the litigation; the convenience of parties, witnesses, and counsel; the relative development of the actions and the work product of counsel; the efficient utilization of judicial facilities and manpower; the calendar of the courts; the disadvantages of duplicative and inconsistent rulings, orders, or judgments; and, the likelihood of settlement of the actions without further litigation should coordination be denied.

Here the Plaintiff's claim to have entered into a purchase agreement for the property in dispute. Defendants maintain the purchase rights were contingent on continued payment of rent. These factual disputes involving title and multiple cases have made it clear that Unlawful Detainer actions are inappropriate to resolve issues related to title and/or property rights and have overturned courts which failed to consolidate or stay unlawful detainer actions in order to

resolve the title/property rights issues. In *Martin-Bragg v. Moore* (2013) 219Cal.App.4th 367 the court stated:

In unlawful detainer proceedings, ordinarily the only triable issue is the right to possession of the disputed premises, along with incidental damages resulting from the unlawful detention. (*Larson v. City and County of San Francisco* (2011) 192 Cal.App.4th 1263, 1297, [123 Cal.Rptr.3d 40]; Friedman et al., Cal. Practice Guide: Landlord–Tenant (The Rutter Group 2012) 8:4, p. 8–1 (rev. # 1 2011)). Ordinarily, issues respecting the title to the property cannot be adjudicated in an unlawful detainer action. (*Drybread v. Chipain Chiropractic Corp.* (2007) 151 Cal.App.4th 1063, 1072, 60 Cal.Rptr.3d 580; Friedman, *supra*, 7:267, p. 7–58.15. (rev. # 1, 2012)) The denial of certain procedural rights enjoyed by litigants in ordinary actions is deemed necessary in order to prevent frustration of the summary proceedings by the introduction of delays and extraneous issues. (*Markham v. Fralick* (1934) 2 Cal.2d 221, 227, [39 P.2d 804]; *Vasey v. California Dance Co.* (1977) 70 Cal.App.3d 742, 747, [139 Cal.Rptr. 72].)

However, the trial court has the power to consolidate an unlawful detainer proceeding with a simultaneously pending action in which title to the property is in issue. That is because a successful claim of title by the tenant would defeat the landlord's right to possession. (Friedman et al., Cal. Practice Guide: Landlord–Tenant, *supra*, 8:5:1, 8:409.1, pp. 8–2, 8–142. (rev. # 1, 2011, 2006).) When an unlawful detainer proceeding and an unlimited action concerning title to the property are simultaneously pending, the trial court in which the unlimited action is pending may stay the unlawful detainer action until the issue of title is resolved in the unlimited action, or it may consolidate the actions. (*Id.*, 7:268, p. 7–58.15 (rev # 1, 2012).) If it does neither and instead tries the issue of title under the summary procedures that constrain unlawful detainer proceedings, the parties' right to a full trial of the issue of title may be unfairly expedited and limited. If complex issues of title are tried in the unlawful detainer proceeding, the proceeding loses its summary character; defects in the plaintiff's title “are neither properly raised in this summary proceeding for possession, nor are they concluded by the judgment.” (*Cheney v. Trauzettel* (1937) 9 Cal.2d 158, 160, [69 P.2d 832]; see *Wood v. Herson* (1974) 39 Cal.App.3d 737, 745, [114 Cal.Rptr. 365]; *Gonzales v. Gem Properties, Inc.* (1974) 37 Cal.App.3d 1029, 1033–1035, [112 Cal.Rptr. 884].)

The motion to consolidate is granted.

TENTATIVE RULING #9: MOTION TO CONSOLIDATE IS GRANTED

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.

June 5, 2026
Dept. 9
Tentative Rulings

RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.